

		the prayer for punitive damages, the request for punitive damages fails. Defendant shall give notice of all the above.
7	Gonzalez vs. Koza 2025-01501517	Motion for Leave to File Cross Complaint Defendant/Cross-Defendants Steve Noble, Deann Noble, and Logan Noble's Motion for Leave to File a Cross-Complaint is GRANTED. (Code Civ. Proc. §428.50, subd. (c).) Moving Party has made the requisite showing that leave to file a cross-complaint is in the interests of justice. (See Cal. Code Civ. Pro. §428.50, subd. (c).) Namely, Defendant has shown (1) a shared factual nexus between Plaintiff and Cross-Complainant's claims and Moving Party's claims against the proposed Cross-Defendants, (2) that no prejudice would result from leave to file the Cross-Complaint, (3) that denying the motion would lead to the forfeiture of some of Moving Party's claims alleged in the Cross-Complaint; and (4) denying leave to file the Cross-Complaint would result in a risk of inconsistent rulings and needless re-litigation of issues that will be determined in this lawsuit. In opposition, Defendant/Cross-Complainants Jason Koza and April Koza argue that the motion should be denied based upon a failure to comply with the meet and confer requirement for discovery motions (Code Civ. Proc. §2016.040) and that a three month delay in seeking this relief warrants denial of the motion. The opposition arguments are not persuasive. It is clear to the court that Moving Party seeks leave to file the proposed Cross-Complaint in good faith and no articulable prejudice would result from permitting such a filing, especially in a litigation that is in the early stages, such as this action.

		Moving Party is therefore granted leave to file the proposed Cross-Complaint. Separate e-filing of the Cross-Complaint is necessary to ensure that the Cross-Complaint is properly indexed in the Court's electronic filing system. Accordingly, Moving Party shall separately e-file the proposed Cross-Complaint attached as Exhibit C to ROA No. 104 within 5 days and promptly serve the Cross-Complaint on all parties. ***The Court notes that there are six (6) discovery motions set in September. Counsels for those motions are ordered to meet and confer in person or via video conference only, by July 31, 2026. If applicable, counsels shall file the notice(s) to withdraw, no later than August 17, 2026. Defendant/Cross-Complainants Jason Koza and April Koza shall give notice of all the above.
--	--	---